

Court No. - 36

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi

Hon'ble Sheo Kumar Singh,J.

Hon'ble Yogesh Chandra Gupta,J.

Sri Mehrotra, learned Advocate informs the Court that counter affidavit has been filed on 18.3.2010.

Sri Anoop Trivedi, learned counsel for the petitioner is directed to file rejoinder affidavit on or before the date fixed.

List on 13.4.2010.

Sri Mehrotra is directed to inform about this order to Sri Trivedi by tomorrow.

Order Date :- 5.4.2010

Gaurav

Court No. - 36

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi

Hon'ble Sheo Kumar Singh,J.

Hon'ble Yogesh Chandra Gupta,J.

Matter was called.

Sri Anoop Trivedi is present for the petitioner side and Sri B.P.Singh Dhakarey, learned Advocate assisted by Sri Dube and Mehrotra is present for the Corporation.

Order of the Hon'ble Apex Court dated 19.2.2010 was placed before this Court.

Earlier in the writ petition, interim stay order was granted against which, Special Leave Petition was filed.

Hon'ble Supreme Court dismissed the Special Leave Petition, but a direction was given that the matter may be taken up and be decided at the earliest but latest within a period of one month from the date of its filing.

This Court is informed that on 18.3.2010, the application in this respect has been filed by the Power Corporation.

Last time the matter was listed for 13.4.2010 but due to strike of the lawyers, the case could not be taken up.

Today the case is again listed.

Sri Trivedi, learned Advocate at this stage informs the Court that there are two other connected matters in which Sri B.C.Rai is the counsel for the petitioner and they may also be listed together for convenience and to avoid any contradictory order. He prays for post the matter on Monday i.e. on 26.4.2010.

Shri Dhakarey, learned Advocate submits that he is to come from

outside and therefore, his convenience while fixing the date may be taken care.

After deliberating the issue of fixing the date, he prays for listing the case on 4.5.2010.

List the matter on 4.5.2010 along with writ petition no.55384 of 2009 showing name of counsel for the parties.

Order Date :- 21.4.2010

Gaurav

Court No. - 36

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi

Hon'ble Sheo Kumar Singh,J.

Hon'ble Rajesh Chandra,J.

Inspite of pressure of the fresh cases and bulk on the Board of other matters, as a learned Advocate from outside appears and he made a mention for taking up the matter and he reminded the orders of the apex court for taking up/disposal of the stay vacation matter/application if possible within time bound frame, we in the presence of Sri Anoop Trivedi who appeared for the petitioner and Sri B.P.Singh Dhakarey assisted by colleagues as mentioned in the earlier orders took up the matter and preliminary facts were informed by both the sides.

At this stage as today small pleadings stood exchanged and small remains, Sri Dhakarey and Sri Trivedi both jointly requested that hearing of the matter may be deferred for 18.5.2010 and that will facilitate both of them to argue the matter and for this both will make necessary arrangements.

It is for them to make this submission but as it is a joint request, the court accepts that.

Accordingly let the matter be posted for 18.5.2010.

In the meantime, it will be good for both the sides to give entire pleadings that remains today incomplete.

Sri B.C.Rai, learned Advocate who appears in other petition is represented today by colleague.

On the next date, if he so likes, he may appear and argue the matter.

Order Date :- 12.5.2010

SM

Court No. - 36

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi

Hon'ble Sheo Kumar Singh,J.

Hon'ble Rajesh Chandra,J.

These are two connected matters which were earlier listed and today with the consent of the counsel for both sides, date was fixed. Although there was pressure of work but as the date was fixed and both sides are present case was called.

Learned counsel for both sides submitted that further papers are required to be exchanged which are in the shape of additional counter affidavit, supplementary counter affidavit and rejoinder affidavit with amendment application and an application under Section 340 Cr.P.C. (as may apply for either of the sides, as the case may be).

Learned counsel for both sides jointly submitted that both may be accommodated by fixing a date i.e. 14th July, 2010 by which date both counsels will be ready with their respective version/affidavits so as to argue the matter.

In view of the aforesaid as desired by both counsels, let the matter be listed on 14.7.2010 with an understanding to get the pleadings as submitted or otherwise completed.

Order Date :- 18.5.2010

Puspendra

Court No. - 2

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran
Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

When the case was taken up today, learned counsel for the petitioner submitted that 3 days time be granted to file reply to an application under Section 340 Cr.P.C. This Court while passing the order dated 18/5/2010, had clearly indicated that parties may exchange their pleadings by the next date. However, ends of justice is served in granting 3 days time to the learned counsel for the petitioner.

With the consent of the parties, put up this writ petition on 20/7/2010.

Order Date :- 14.7.2010

SB

Court No. - 2

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Abhinava Upadhya,J.

Re: Civil Misc. Amendment Application No. 206256 of 2010

Respondents pray for and are granted three days' time to file reply to the affidavit accompanying the amendment application. Petitioner shall have three days thereafter to file rejoinder affidavit.

Re: Writ Petition

By consent of learned counsel for the parties, list on 19.8.2010.

Order Date :- 10.8.2010

abHiShEk

Court No. - 2

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Abhinava Upadhya,J.

By consent of the learned counsel for the parties, list on 15.9.2010.

Order Date :- 1.9.2010

p.s.

Court No. - 2

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Abhinava Upadhya,J.

By the consent of the learned counsel for the parties list on 5.10.2010.

Order Date :- 15.9.2010

Anupam

Court No. - 2

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Abhinava Upadhya,J.

By consent of learned counsel for the parties, put up tomorrow i.e. 6.10.2010.

Order Date :- 5.10.2010

abHiShek

Court No. - 2

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Abhinava Upadhya,J.

By consent of learned counsel for the parties, put up tomorrow i.e. 7.10.2010.

Order Date :- 6.10.2010

aBHishek

Court No. - 2

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Abhinava Upadhya,J.

Sri C.B. Yadav, learned Senior Counsel along with Sri B.C. Rai and Sri Anoop Trivedi have appeared on behalf of the petitioners and Sri B.P.S. Dhakray, learned counsel along with Sri H.P. Dube and Sri A.K. Mehrotra have appeared on behalf of the respondents.

Due to paucity of time, argument could not be concluded.

By consent of learned counsel for the parties, put up/list on 21.10.2010.

Order Date :- 7.10.2010

aBHishek

Court No. - 2

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Abhinava Upadhya,J.

A request has been made by Sri A.K. Mehrotra, learned counsel for the petitioner that Sri B.P.S. Dhakarey is unable to come today. He prays for adjournment.

On his request, list on 10.11.2010.

Order Date :- 21.10.2010

p.s.

Court No. - 2

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi

Hon'ble Vineet Saran,J.

Hon'ble Abhinava Upadhya,J.

Sri H.P. Dube, learned counsel for the respondent has made a request that due to personal problem Sri B.P.S. Dhakarey, who is to appear for the Power Corporation, has not been able to come to Allahabad and hence the hearing of the case may be adjourned.

By consent of the learned counsel for the parties, list on 18.11.2010.

The matter shall not be treated as part-heard/tied up to this Bench.

Order Date :- 10.11.2010

p.s.

Court No. - 2

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi, A.K. Mehrotra, B.P.S. Dhakray, H.P. Dubey, S.C., S.S. Dhakray

Hon'ble Sheo Kumar Singh, J.

Hon'ble Rajesh Chandra, J.

Sri Mehrotra, learned Advocate informs the court that Sri Dhakray, learned Advocate comes from outside to argue the case and today there is illness slip of Sri Anoop Trivedi, learned Advocate.

As prayed, list this matter on 13.12.2010.

Order Date :- 24.11.2010

Sachdeva

Court No. - 7

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi,A.K.
Mehrotra,B.P.S.Dhakray,H.P. Dubey,S.C.,S.S.Dhakray

Hon'ble Vineet Saran,J.

Hon'ble Sabhajeet Yadav,J.

As prayed by learned counsel for the parties list on 12.01.2011.

Order Date :- 21.12.2010

SL

(Sabhajeet Yadav, J.) (Vineet Saran, J.)

Chief Justice's Court

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi, A.K. Mehrotra, B.P.S. Dhakray, H.P. Dubey, S.C., S.S. Dhakray

Hon'ble Ferdino Inacio Rebello, Chief Justice

Hon'ble Vineet Saran, J.

List this matter on 3rd February, 2011.

(Vineet Saran, J) (F.I. Rebello, C.J.)

Order Date :- 12.1.2011

V.S.

Chief Justice's Court

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi,A.K. Mehrotra,B.P.S.Dhakray,H.P. Dubey,S.C.,S.S.Dhakray

Hon'ble Ferdino Inacio Rebello,Chief Justice

Hon'ble Vineet Saran,J.

List on 4th February, 2011 instead of 3rd February,2011.

Order Date :- 20.1.2011

VPC

(Vineet Saran,J.)(F. I. Rebello,C. J.)

Chief Justice's Court

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi,A.K. Mehrotra,B.P.S.Dhakray,H.P. Dubey,S.C.,S.S.Dhakray

Hon'ble Ferdino Inacio Rebello,Chief Justice

Hon'ble Vineet Saran,J.

As prayed by learned counsel for the respondents, list on 15th February, 2011.

Order Date :- 4.2.2011

VPC

(Vineet Saran,J.)(F. I. Rebello,C. J.)

Court No. - 32

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi,A.K.

Mehrotra,B.P.S.Dhakray,H.P. Dubey,S.C.,S.S.Dhakray

Hon'ble Vineet Saran,J.

Hon'ble Ashok Srivastava,J.

A request for adjournment has been made by Sri A.K. Mehrotra, learned counsel for the respondents.

As agreed by the learned counsel for the parties, list in the next cause list.

Order Date :- 15.2.2011

aBHIShEk

(Ashok Srivastava, J.)

(Vineet Saran, J.)

Court No. - 3

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi,A.K. Mehrotra,B.P.S.Dhakray,H.P.
Dubey,S.C.,S.S.Dhakray

Hon'ble Amitava Lala,J.

Hon'ble Ashok Srivastava,J.

As prayed for let it appear on 6.4.2011.

Order Date :- 18.3.2011

pks

Court No. - 3

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi,A.K. Mehrotra,B.P.S.Dhakray,H.P. Dubey,S.C.,S.S.Dhakray

Hon'ble Amitava Lala,J.

Hon'ble Ashok Srivastava,J.

As prayed let it appear on 19.04.2011 at serial no.1.

Order Date :- 6.4.2011

pks

Court No. - 3

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi,A.K. Mehrotra,B.P.S.Dhakray,H.P. Dubey,S.C.,S.S.Dhakray

Hon'ble Amitava Lala,J.

Hon'ble Ashok Srivastava,J.

Let it appear on 22.04.2011 in the additional cause list.

Order Date :- 19.4.2011

pks

Court No. - 3

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi, A.K. Mehrotra, B.P.S. Dhakray, H.P. Dubey, S.C., S.S. Dhakray

Hon'ble Amitava Lala, J.

Hon'ble Ashok Srivastava, J.

As prayed, the matter will appear on 5.5.2011 at 2:00 PM in the main cause list.

Order Date :- 22.4.2011

pks

Court No. - 3

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi,A.K. Mehrotra,B.P.S.Dhakray,H.P. Dubey,S.C.,S.S.Dhakray

Hon'ble Amitava Lala,J.

Hon'ble Ashok Srivastava,J.

Vide order passed in Writ Petition No.62844 of 2010, the matter will appear on 23.05.11.

Order Date :- 5.5.2011

IA

Court No. - 3

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi,A.K. Mehrotra,B.P.S.Dhakray,H.P. Dubey,S.C.,S.S.Dhakray

Hon'ble Amitava Lala,J.

Hon'ble Ashok Srivastava,J.

Supplementary Counter affidavit filed today be kept with the record.

Due to congestion in the list it is very difficult to take up the matter before the forthcoming summer vacation. Therefore, on 06.07.2011 the matter is fixed for hearing.

Order Date :- 23.5.2011

MAA/-

Court No. - 3

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi, A.K. Mehrotra, B.P.S. Dhakray, H.P. Dubey, S.C., S.S. Dhakray

Hon'ble Amitava Lala, J.

Hon'ble Ashok Srivastava, J.

As jointly prayed, let it appear tomorrow i.e. 7th July, 2011.

Order Date :- 6.7.2011

IA

Court No. - 3

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi,A.K. Mehrotra,B.P.S.Dhakray,H.P. Dubey,S.C.,S.S.Dhakray

Hon'ble Amitava Lala,J.

Hon'ble Ashok Srivastava,J.

As prayed for, let it appear on 20th July, 2011.

Order Date :- 7.7.2011

Kst/

Court No. - 2

Case :- WRIT - C No. - 55365 of 2009

Petitioner :- M/S Rukmani Ferro Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Anoop Trivedi

Respondent Counsel :- Rajesh Tripathi,A.K.

Mehrotra,B.P.S.Dhakray,H.P. Dubey,S.C.,S.S.Dhakray

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Hon'ble Ashok Bhushan,J.

Hon'ble Bharati Sapru,J.

Heard Sri C.B. Yadav, Senior Advocate, assisted by Sri Anoop Trivedi, Advocate for the petitioner and Sri Bhanu Pratap Singh Dhakray, Advocate assisted by Sri H.P. Dubey, Advocate and Sri Anil Kumar Mehrotra, Advocate for the respondents.

Counter and rejoinder affidavits have been exchanged between the parties and with the consent of the learned counsel for the parties, the writ petition is being finally disposed of.

The petitioner (M/s Rukmani Ferro Private Limited) had obtained an electric connection of 3000 K.V.A. under HV category. On the basis of checking a provisional assessment notice dated 22nd September, 2009 has been issued referring the checking report dated 4th September, 2009 and the meter examination report dated 19th September, 2009 amounting to Rs.2,87,74,109/-. The notice further provided that petitioner may file its reply within one week failing which the provisional assessment shall be treated to be final. The petitioner challenging the said notice dated 22nd September, 2009, has come up before this Court praying for following relief:-

"i) issue an appropriate writ, order or direction quashing the notice/order dt. 22.9.2009 issued by respondent no.3 (As contained in Annexure No.17 to this writ petition).

ii) issue an appropriate writ, order or direction to declare the sealing certificate dt. 4.9.2009 prepared by the respondents no.3 and 4 as invalid and non-est.

iii) issue an appropriate writ, order or direction commanding the respondents concerned not to proceed in any manner against the petitioner company on the basis of sealing certificate dt. 4.9.2009 and the notice dt. 22.9.2009.

iv) issue an appropriate writ, order or direction commanding the respondents concerned not to take any coercive measure against the petitioner in pursuance of the show cause notice dt. 22.9.2009."

This Court on 28th October, 2009, relying on a Division Bench judgment of this Court in the case of **Amrawati Devi vs. Purvanchal Vidyut Vitaran Nigam** reported in 2009(2) AWC 1190, passed an interim order staying the further proceedings for assessment of bills pursuant to notice dated 22nd September, 2009. The Corporation aggrieved by the interim order of this Court filed Special Leave to Appeal (Civil) No.3406 of 2010, which was dismissed by the Apex Court vide its order dated 19th February,

2010. The Apex Court, however, observed that petitioner if advised, file counter affidavit along with the application for vacating the interim order and further observed that if such an application is filed, the same may be disposed of at the earliest. After the order of the Apex Court dated 19th February, 2010, the matter was taken by this Court. The learned counsel for both the parties had prayed further time for completion of the pleadings so that the matter be heard finally. In view of the above, the matter was heard on several occasions by different Benches of this Court but due to adjournments of either of the parties on one or other reasons, the matter could not be decided earlier.

Learned counsel for the petitioner, challenging the assessment notice, has submitted that prior to issuance of notice for provisional assessment under Section 126(2) of the Electricity Act, 2003, the Corporation was required to give an opportunity to the consumer before coming to a conclusion that present is a case of unauthorised use of electricity. The counsel for the petitioner has placed reliance on a Division Bench judgment of this Court in the case of ***Ashok Kumar and another vs. State of U.P. and others*** reported in 2008(6) A.D.J. 660 (specially paragraphs 56 and 58). Learned counsel for the petitioner further submits that Division Bench in the aforesaid judgment has laid down that before coming to the conclusion that there has been unauthorised use of electricity, an opportunity is required to be given to the consumer. It is further submitted that the petitioner was not given any information that it has right to get the meter checked by independent agency as contemplated by Paragraph 5.6 of the U.P. Electricity Supply Code, 2005. He has also placed reliance on the Division Bench judgment of this Court in ***Amrawati Devi's*** case (supra), which is said to have been affirmed by the Apex Court.

Learned counsel for the petitioner further submits that the inspection was made on 4th September, 2009 by eleven members team and further the M.R.I. was also conducted but petitioner was not informed anything adverse either about the inspection or the M.R.I. report and there was no basis so as to initiate proceedings for provisional assessment. It is submitted that notice for provisional assessment being without jurisdiction, deserves to be set-aside.

Sri Bhanu Pratap Singh Dhakray, refuting the submissions of learned counsel for the petitioner, contends that writ petition itself cannot be entertained since the petitioner has rushed only against the notice. He submits that petitioner was given opportunity by the notice itself to file objection and it was open for the petitioner to raise all its objections in response to the notice. He has placed reliance on a judgment of the Apex Court in the case of ***GKN Driveshafts (India) Ltd. vs. Income Tax Officer and others*** reported in (2002)125 Taxman 963 (SC). Learned counsel for the petitioner submits that the Apex Court in the aforesaid case has taken a view that challenge to the notice for provisional assessment is premature. He further submits that petitioner never made any request for checking the meter as contemplated under Paragraph 5.6 of the U.P. Electricity Supply Code, 2005 and present is neither a case of defective meter nor paragraph 5.6 of the U.P. Electricity Supply Code 2005 is applicable. He submits that present is a case of theft and notice of provisional assessment was rightly issued under Section 126(2) of the Electricity Act, 2003, which was required to be replied by the petitioner but the petitioner instead of submitting reply rushed to this Court and obtained an interim order stopping the assessment proceedings.

We have considered the submissions of learned counsel for the parties and have perused the record.

The notice dated 22nd September, 2009 being a provisional assessment clearly provides that petitioner for submitting its case may file reply within seven days. The notice referred to the checking report dated 4th September, 2009, the meter examination report dated 19th September, 2009 and calculation regarding revenue assessment. We are of the view that for objections, which are sought to be raised and various pleas which have been made in the writ petition, it was open for the petitioner to file a detailed objection and raise all its pleas. The assessment being only provisional, the same could have been modified, confirmed or discharged by the authorities themselves. It is not the stage for this Court to enter into various issues raised by the parties.

Learned counsel for the petitioner submits that petitioner's electric connection was reconnected and it is paying the regular bills. In view of the above, instead of entering into various issues raised regarding lack of jurisdiction and not complying with the provisions of U.P. Electricity Supply Code 2005, ends of justice be served in giving liberty to the petitioner to file a detailed objection to the notice dated 22nd September, 2009 within fifteen days from today and the authority competent shall consider the objection and take final decision in the matter dealing with each objection raised therein including the objection regarding competence of issuance of notice. It is ordered accordingly. It is made clear that we are not expressing any opinion on merits of any of the issues raised by either of the parties and it is for the authority competent to consider all aspect of the matter and take appropriate decision in accordance with law. Looking to the seriousness of the issue, we

are of the view that the authority competent shall also give notice regarding date of hearing in the matter and thereafter take appropriate decision in accordance with law.

Learned counsel for the petitioner submits that certain protection be provided to the petitioner till a final decision is taken. We are of the view that since only provisional assessment notice has been issued, at this stage there is no occasion of any coercive action against the petitioner unless final assessment is made, hence the apprehension of the petitioner is misconceived.

The writ petition is disposed of with the above directions.

Order Date :- 20.7.2011

Rakesh